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Maximum-Pressure Immigration Enforcement:

A Litigation-Resilient Architecture for Federal Enforcement, Funding Leverage, and Targeted Criminal Prosecution

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ABSTRACT

This paper presents a maximum-pressure federal immigration enforcement architecture designed to survive judicial review. It distinguishes sharply between what the federal government can execute directly, what it can leverage through grant conditions and certification regimes, and what it cannot constitutionally compel. The architecture is built on six independent, severable pillars grounded in specific constitutional doctrine, federal statute, or regulatory authority. This final revision adds four hardening elements: (1) a program-by-program statutory authority mapping for all major DOJ/DHS discretionary grant programs, identifying where Certifications A/B/C are on firm ground and where congressional authorization is required; (2) a neutral audit-selection rule with documented objective triggers and a prohibited-factor list, designed to defeat as-applied selective enforcement claims; (3) a standards-of-proof framework distinguishing credible allegation, confirmed finding, material non-compliance, fraud referral threshold, and debarment referral threshold with explicit evidentiary requirements for each; and (4) a model severability clause ensuring that judicial invalidation of any single certification or prong does not affect the enforceability of the remainder.

Keywords: *immigration enforcement, Spending Clause, South Dakota v. Dole, NFIB v. Sebelius, anti-commandeering, Printz v. United States, 2 CFR Part 200, 2 CFR Part 180, False Claims Act, 8 U.S.C. § 1324, grant certification, suspension and debarment, operational capacity*

Disclaimer: *This working paper represents independent policy research and analysis. It does not constitute legal advice and does not represent the position of any government agency, academic institution, or political organization. All citations are drawn from publicly available federal law, regulations, and case authority.*

INTERPRETIVE RULE: SEVERABILITY

Each section, pillar, certification, certification prong, appendix, and definition in this framework is intended to be independently operative and severable from every other. Judicial invalidation, enjoinment, or limitation of any provision does not affect the validity or enforceability of any remaining provision. Each mechanism is grounded in its own independent legal authority and is designed to function in the absence of any other. This interpretive rule applies to all award agreements, policy instruments, and implementing documents that incorporate this framework by reference.

SECTION 1: DESIGN PRINCIPLES FOR A LITIGATION-RESILIENT ENFORCEMENT POSTURE

1.1 The Core Design Problem

An enforcement posture that overpromises collapses twice: first in court, where injunctions generate adverse precedent, and second in practice, where enjoined mechanisms create operational gaps. The goal of this paper is a posture that hits as hard as the law allows and does not hand opponents an easy legal win.

The design rules that govern this architecture:

- Target conduct and money — not viewpoints, advocacy, legal representation, or association. Every enforcement mechanism must be tied to an act, a false statement, or a provable element — not to a policy position or political affiliation.
- Never punish passive non-cooperation as if it were active obstruction. Anti-commandeering doctrine protects the former. Only affirmative obstructive conduct is reachable.
- Avoid automatic penalties. Every consequence must flow from documented findings, notice, and an administrative record. 'Automatic' reads as arbitrary and capricious — exactly what courts enjoin.
- Tie every funding condition to a program nexus. Conditions without nexus fail South Dakota v. Dole. Conditions so severe they leave no real choice trigger NFIB v. Sebelius coercion analysis.
- Build each pillar to stand independently. If one mechanism is enjoined, the others continue operating. No single point of failure.
- Apply conditions prospectively. Certifications and compliance conditions apply to new awards and renewals from the effective date of this framework forward. They do not retroactively alter the terms of existing awards unless those awards already incorporate equivalent conditions or are amended with recipient consent. Retroactive imposition of new conditions on existing awards is a Dole clarity failure and an APA arbitrary-and-capricious vulnerability that courts have used to invalidate otherwise valid enforcement mechanisms.

1.2 What This Architecture Does and Does Not Claim

This Architecture DOES	This Architecture DOES NOT
Target affirmative obstruction of federal officers and operations	Claim authority to mandate state/local enforcement of federal law
Condition discretionary grants on verifiable, program-nexus conduct standards	Promise to defund jurisdictions completely via executive action alone
Use False Claims Act and § 1001 to recover money tied to false certifications	Authorize unilateral asset freezes against U.S. domestic governments

This Architecture DOES	This Architecture DOES NOT
Prosecute harboring, smuggling, obstruction where criminal elements are met	Criminalize non-cooperation, sanctuary policy, or political advocacy
Publish non-cooperation data to create political accountability	Treat detainer compliance as a mandatory federal command
Expand federal operational capacity to reduce choke-point dependence	Rely on any single mechanism as a total solution

SECTION 2: CONSTITUTIONAL RAILS — WHAT DEFINES THE PLAYING FIELD

2.1 The Anti-Commandeering Limit (The Wall You Must Draft Around)

Printz v. United States, 521 U.S. 898 (1997) — Congress may not compel state or local officers to execute federal programs or administer federal law. This is a hard structural limit, not a policy preference. It directly bars mandatory detainer-hold orders, mandatory local enforcement participation, and directives ordering states to repeal their own laws.

Murphy v. NCAA, 584 U.S. 453 (2018) — Reinforces Printz: the federal government cannot dictate how states regulate or legislate within their own domains. Any provision framed as 'states must' or 'localities shall' enforce federal immigration law reads directly into this limit and will be enjoined.

DRAFTING RULE: Anything that reads as an order to state or local officials to perform a federal function must be reframed as a condition, a request with documented consequences, or an eligibility standard for federal benefits. The substance of the pressure can be identical. The framing must change.

2.2 The Spending Clause Framework (Where the Funding Leverage Lives)

South Dakota v. Dole, 483 U.S. 203 (1987) — Conditions on federal grants are valid when: (1) in pursuit of general welfare; (2) stated unambiguously; (3) related to the federal interest in the program; and (4) not independently unconstitutional. Condition (3) — the nexus requirement — is the most important drafting constraint. A law enforcement grant can carry immigration-cooperation conditions. An education grant generally cannot.

NFIB v. Sebelius, 567 U.S. 519 (2012) — Adds the coercion ceiling: if the financial inducement is so substantial that a state has no genuine choice but to comply, the condition is unconstitutionally coercive. Threatening to cut off all federal funds for a state for non-compliance with an unrelated requirement is the paradigm case. Conditions must be proportionate to the program and the compliance requirement.

SPENDING CLAUSE DRAFTING RULES

- Write conditions as eligibility standards for new awards, not retroactive punishment

for existing ones. Applicants choose to apply; compliance becomes a term they accept voluntarily.

- Match the condition to the grant program. Law enforcement grants support immigration-cooperation conditions clearly. Health, education, and transportation grants require explicit congressional authorization for immigration conditions.
- State conditions unambiguously in the award agreement. Vague conditions fail the Dole clarity requirement and create administrative-record vulnerabilities.
- Scale consequences proportionately to the violation. Total termination for a minor paperwork deficiency reads as arbitrary and capricious. Build a documented, graduated remedy ladder.
- Never threaten to cut off a mandatory formula program (Medicaid, SNAP, Title I) via executive action. That requires Congress to amend the authorizing statute.

2.3 The Preemption Hook (Civil Litigation Against Affirmatively Obstructive Laws)

Supremacy Clause (U.S. Const. Art. VI, Cl. 2) — Federal immigration law preempts state and local laws that conflict with or affirmatively obstruct federal operations. Preemption litigation is available against laws that direct officials to actively impede federal agents — not against laws that merely decline to participate.

The practical distinction matters enormously for drafting and litigation strategy:

Preemption Claim IS Available	Preemption Claim IS NOT Available
State law directing officials to physically impede ICE agents performing lawful arrests	State law that simply prohibits local police from asking about immigration status
Local ordinance ordering destruction of records federal agents have a right to access	City policy declining to honor ICE detainers (passive non-cooperation)
Policy forbidding employees from responding to federal legal process or court orders	State law providing services to unauthorized individuals without concealment intent
Instruction to provide false information to federal agents or investigators	Sanctuary declaration without accompanying obstruction directives

SECTION 3: PILLAR 1 — GRANT CERTIFICATION AND AUDIT CHOKE POINT

3.1 The Strategic Logic

Discretionary federal grants administered by DOJ and DHS represent the single most powerful lawful lever available against non-cooperating jurisdictions. When structured correctly — with clear, program-nexus certifications, robust audit mechanisms, and a documented remedy ladder

— this mechanism can be both economically coercive and judicially durable. The key is that applicants accept the conditions voluntarily when they apply, removing the commandeering problem entirely.

3.2 Severability

Each certification (A, B, C, D) is independent. Judicial invalidation or injunction of any individual certification, or any subclause within a certification, does not affect the enforceability of the remaining certifications or subclauses. Each certification rests on its own statutory and program-nexus basis and is severable from the others. Within each certification, each lettered prong is independently operative and severable. If a court enjoins prong (i) of Certification A, prong (ii) remains in full force. Award agreements implementing this framework should include an explicit severability clause incorporating this principle by reference.

Model severability clause for award instruments:

SEVERABILITY CLAUSE (for inclusion in award agreement)

Each certification incorporated into this award agreement is independent of and severable from every other certification. Each lettered prong within each certification is independently operative and severable from every other prong. If any certification, prong, or provision of this award agreement is held invalid, unenforceable, or enjoined by a court of competent jurisdiction, that holding shall not affect the validity or enforceability of any remaining certification, prong, or provision. The parties intend each provision to be enforced to the maximum extent permitted by applicable law.

3.3 Model Certification Language

The following certifications are written to satisfy South Dakota v. Dole's nexus and clarity requirements and to survive anti-commandeering challenge by targeting conduct rather than commanding state action. These should be embedded in grant award agreements for all relevant DOJ and DHS discretionary programs.

CERTIFICATION A — Non-Interference with Federal Enforcement Activities (Program Nexus: Law Enforcement Grants)

PROGRAM NEXUS STATEMENT: This condition is material to the purpose of this award because the award funds law enforcement activities, personnel, and capacity. A recipient that affirmatively restricts grant-funded personnel from sharing immigration-status information or denying federal officers interview access in grant-funded facilities directly compromises the program objective of effective, coordinated law enforcement. Noncompliance undermines the federal interest in this award by using federal law enforcement funds to actively impede federal law enforcement operations. Remedies under this certification are limited in scope to this award and program unless separate fraud findings under

Certification C or D independently support broader action. RECIPIENT CERTIFICATION: Recipient certifies that, during the period of this award, recipient will not implement, enforce, or maintain any formal policy, official directive, or standing instruction that: (i) affirmatively prohibits grant-funded personnel from communicating, upon request, with federal immigration authorities regarding the immigration or citizenship status of individuals in recipient's custody or lawful detention; or (ii) directs grant-funded personnel to deny reasonable access to federal officers conducting lawful immigration enforcement interviews in recipient's detention or custody facilities, except where denial is required by a court order or is consistent with a generally applicable, non-discriminatory facility security policy applied equally to all law enforcement agencies. This certification does not require recipient to dedicate its own personnel or resources to federal immigration enforcement, to honor federal civil detainer requests, or to take any affirmative step to enforce federal immigration law.

CERTIFICATION B — Non-Use of Grant Funds to Impede Federal Operations (Program Nexus: All DOJ/DHS Discretionary Grants)

PROGRAM NEXUS STATEMENT: This condition is material to the purpose of all DOJ and DHS discretionary awards because those awards advance federal public safety and law enforcement objectives. Using award funds to impede the federal law enforcement operations those same awards are designed to support is directly contrary to the program purpose and constitutes a misuse of federal funds under 2 CFR Part 200. This condition does not restrict recipients from pursuing lawful judicial challenges to federal enforcement actions; it restricts the use of federal award funds to finance operational interference with those actions. Remedies are proportionate to the scope of funds implicated and the documented nature of the misuse. RECIPIENT CERTIFICATION: Recipient certifies that no funds received under this award will be used, directly or indirectly, to: (i) fund, support, or administer any program, activity, or instruction designed to impede, obstruct, or interfere with a federal officer performing lawful immigration enforcement duties; (ii) fund legal or administrative challenges to federal immigration enforcement operations other than through lawful judicial proceedings in which recipient is a named party asserting a bona fide legal claim; or (iii) fund the production or distribution of materials instructing individuals on methods to evade detection by, or obstruct the operations of, federal immigration enforcement personnel.

CERTIFICATION C — Record Retention and Federal Access (Program Nexus: Grants Involving Custody, Detention, or Federally Funded Facilities)

PROGRAM NEXUS STATEMENT: This condition is material to the purpose of awards that fund custody, detention, or facility operations because the integrity of records held in those facilities and the accuracy of representations made to federal grant administrators are direct preconditions to the lawful use of award funds. A recipient that destroys

records or provides false information in connection with a federally funded facility undermines both the program objective and the government's ability to audit and verify the use of federal funds. Noncompliance with this certification does not merely constitute a policy disagreement; it constitutes potential fraud on the federal award system. RECIPIENT CERTIFICATION: Recipient certifies that it will not implement any policy directing the destruction, alteration, or concealment of records that federal law enforcement officers have a legal right to access through lawful process, and will not instruct personnel to provide false or misleading information to federal officers or investigators in connection with this award or any activity funded by this award. Recipient acknowledges that material false statements made in this certification or in any report, claim, or record connected to this award may constitute a violation of 18 U.S.C. § 1001 and may subject recipient to civil liability under the False Claims Act, 31 U.S.C. §§ 3729–3733.

CERTIFICATION D — Annual Compliance Attestation

The undersigned authorized representative certifies, to the best of their knowledge and belief, that recipient remains in compliance with all certifications made at the time of award, that no material change in policy or practice has occurred that would constitute a violation of those certifications, and that any such change, if it has occurred, has been reported to the awarding agency in writing within 30 days of occurrence. The undersigned understands that a knowing and material false statement in this attestation may constitute a false claim under 31 U.S.C. § 3729 and a criminal false statement under 18 U.S.C. § 1001.

3.3 The Compliance and Remedy Ladder (2 CFR Part 200)

The following ladder must be followed in sequence with documentation at each step. This procedural compliance builds the administrative record necessary to defend termination decisions in court and to support False Claims Act referrals where false certifications are found. At each step, the agency must select the least drastic remedy consistent with program integrity: if a less severe remedy is reasonably likely to achieve compliance, it must be attempted before escalating to the next step. Escalation requires a written agency determination explaining why the less drastic option was inadequate or unavailable. This proportionality rule is not discretionary — it is the primary defense against arbitrary-and-capricious reversal on administrative appeal or judicial review.

Step	Trigger	Mechanism	Legal Authority	Documentation Required
1. Notice of Concern	Credible report, audit referral, or documented incident suggesting	Written notice to recipient stating the factual basis; 30-day written response period;	2 CFR § 200.208	Documented factual basis for concern; recipient response preserved in administrative record; agency determination memo

Step	Trigger	Mechanism	Legal Authority	Documentation Required
	potential non-compliance	no adverse action pending response		
2. Additional Conditions	Agency review of recipient response finds confirmed minor non-compliance; first occurrence; no evidence of willfulness	Enhanced reporting requirements; prior-approval conditions; targeted monitoring added to award; stated in signed award amendment	2 CFR § 200.208(b)	Written agency findings; recipient notified in writing; conditions incorporated into award instrument by amendment
3. Payment Withholding	Material non-compliance confirmed after additional conditions; recipient response inadequate or corrective plan not accepted	Suspend drawdown of funds pending submission and agency acceptance of written corrective action plan; funds not forfeited	2 CFR § 200.339(a)	Documented material finding with specific factual basis; notice to recipient with cure opportunity stated; agency determination memo signed
4. Award Suspension	Material non-compliance persists; corrective action plan not submitted, not accepted, or not implemented within agreed timeframe	Temporary suspension of award activities; access to undrawn funds frozen pending agency review; recipient may appeal to agency head	2 CFR § 200.339(a)(3)	Prior steps documented; agency determination memo; notice to recipient with stated appeal rights and timeframe
5. Award Termination	Ongoing material non-compliance after suspension; false certification confirmed by documented finding; fraud referral substantiated	Termination of award; disallowance of improperly used costs; demand for repayment; referral for debarment consideration (not automatic)	2 CFR §§ 200.339–200.340	Complete, documented administrative record; prior steps evidenced; notice with stated basis; appeal rights provided; proportionality assessment documented
6. Suspension/ Debarment Referr	False certifications confirmed; fraud finding; pattern of material non-compliance	Referral to agency Suspension and Debarment Official (SDO); SDO conducts independent	2 CFR Part 180; 2 CFR Part 3000	Formal referral memo with evidentiary basis; SDO makes independent determination; not automatic consequence of Step 5

Step	Trigger	Mechanism	Legal Authority	Documentation Required
al	across multiple awards demonstrating systemic disregard	review; exclusion requires independent SDO determination		
7. False Claims Act Referral	Materially false certifications knowingly made; grant funds drawn on false representations; evidence meets FCA knowledge standard	Referral to DOJ Civil Division for FCA civil enforcement evaluation; parallel criminal referral to DOJ Criminal Division if § 1001 elements present	31 U.S.C. §§ 3729–3733; 18 U.S.C. § 1001	Audit findings; certification records with specific false representations identified; evidence of knowledge, deliberate ignorance, or reckless disregard; referral memo

3.5 Standards of Proof for Each Finding Level

The compliance ladder requires different evidentiary thresholds at each step. Conflating these thresholds is the most common administrative-record error that causes termination decisions to be reversed on appeal. The following standards apply and must be documented explicitly in agency determination memos.

Finding Level	Standard	What It Requires	What It Does NOT Require
Credible Allegation (Step 1 trigger)	Reasonable basis to believe a violation may have occurred	Specific, articulable facts from a reliable source (audit flag, documented incident report, official complaint, or pattern in dashboard data) suggesting non-compliance with a specific certification prong	Proof of violation; admission; or resolution of factual disputes. Credible allegation alone supports notice and inquiry, nothing further.
Confirmed Finding (Steps 2–4 trigger)	Preponderance of documented evidence	Agency review of recipient response plus available evidence establishes it is more likely than not that a specific certification prong was violated. Finding must identify: (a) which prong; (b) what conduct; (c) what evidence; (d) why the response was inadequate.	Admission of violation; criminal-standard proof; or proof of intent. Confirmed finding supports administrative remedies only, not criminal referral.
Material Non-Compliance (Steps 3–5 trigger)	Confirmed finding of a violation that is substantial in nature, ongoing, or uncorrected after	All elements of Confirmed Finding plus: (a) the violation affected a material program term (not a minor procedural requirement); (b) the recipient	Evidence of fraud or intent. Material non-compliance supports withholding, suspension, and

Finding Level	Standard	What It Requires	What It Does NOT Require
	opportunity to cure	was given notice and opportunity to cure; (c) the cure period elapsed without adequate correction.	termination, but not FCA or criminal referral.
Fraud Referral Threshold (Step 7 trigger)	Reasonable belief that a materially false certification was made knowingly, with deliberate ignorance, or with reckless disregard	Documented evidence establishing: (a) the specific false representation; (b) the specific true facts known to or accessible by the certifying official at the time of certification; (c) the materiality of the representation to the award decision; and (d) the absence of a plausible good-faith basis for the representation.	Conviction; admission; or proof beyond reasonable doubt. Referral initiates DOJ evaluation; it is not a finding of liability.
Debarment Referral Threshold (Step 6 trigger)	Adequate evidence of a cause for debarment as defined in 2 CFR § 180.800	Documentation of: (a) a cause listed in 2 CFR § 180.800 (e.g., fraud, FCA violation, criminal conviction, pattern of non-compliance demonstrating lack of integrity); (b) the SDO's independent determination that debarment is warranted; and (c) notice to the respondent with opportunity to present information in opposition.	Conviction. SDO may debar based on civil findings, preponderance standard, subject to respondent's right to present information.

SECTION 4: PILLAR 2 — DEFINING NON-COOPERATION AS CONDUCT, NOT VIEWPOINT

4.1 Why the Definition Is the Whole Game

The most common legal vulnerability in immigration enforcement directives is defining 'sanctuary jurisdiction' or 'non-cooperation' so broadly that it captures protected conduct — advocacy, political speech, or passive non-participation — alongside genuinely reachable obstructive conduct. A definition that fails this test gets enjoined entirely, including the legitimate parts.

The solution is to define the trigger with surgical precision: only affirmative conduct that directly interferes with federal operations or involves fraud qualifies. Everything else — policy statements, political positions, legislative declarations — is outside the definition.

4.2 Model Non-Cooperation Definition

MODEL DEFINITION: Affirmative Non-Cooperation (Enforcement Trigger)

For purposes of this framework, a jurisdiction or entity engages in 'affirmative non-cooperation' only when it takes one or more of the following specific acts: (a) COMMUNICATION RESTRICTION: Implements a formal written policy, standing order, or binding instruction that prohibits or materially restricts grant-funded personnel from communicating, upon the request of a federal immigration officer, the immigration or citizenship status of an individual in the jurisdiction's lawful custody, where such communication is lawfully authorized and does not violate an applicable court order. (b) FACILITY ACCESS DENIAL: Issues a directive specifically denying federal immigration officers reasonable access to conduct voluntary interviews with consenting individuals in the jurisdiction's custody facilities, where such access is sought pursuant to lawful authority and is not governed by a generally applicable, non-discriminatory access policy applied equally to all outside law enforcement agencies. (c) RECORD OBSTRUCTION: Directs personnel to destroy, alter, or withhold records that federal law enforcement officers have a lawful right to access through applicable legal process. (d) FALSE INFORMATION: Directs personnel to provide materially false or misleading information to federal immigration officers or investigators in connection with a federal immigration enforcement operation or a federal grant. (e) ACTIVE PHYSICAL OBSTRUCTION: Takes official action, or directs personnel to take official action, that physically impedes federal officers in the performance of lawful immigration enforcement operations, beyond the assertion of lawful legal rights through judicial process. NOT INCLUDED IN DEFINITION: The following do not constitute 'affirmative non-cooperation' for purposes of this framework: political statements, legislative declarations, or sanctuary designations unaccompanied by any of the above acts; declining to dedicate state or local resources to federal enforcement; declining to honor civil detainer requests; providing generally available services to individuals regardless of immigration status; lawful legal representation or advocacy; judicial proceedings challenging federal enforcement actions.

4.3 Why This Definition Survives Anti-Commandeering and First Amendment Challenge

- It targets acts, not speech. Political declarations and sanctuary labels without accompanying obstructive conduct fall outside the definition entirely.
- It does not order state or local officials to perform any federal function. The only affirmative obligation is to refrain from specific obstructive acts — a negative duty, not a commandeering.
- The facility access standard explicitly preserves generally applicable security policies, removing the facial conflict with legitimate institutional governance.
- The false information prong is grounded in 18 U.S.C. § 1001, which already applies independently. The definition merely identifies conduct that also triggers grant consequences.

- The explicit exclusion list is as important as the inclusion list. Showing courts what you are NOT targeting is what distinguishes this definition from viewpoint-based enforcement.

SECTION 5: PILLAR 3 — FRAUD AND FALSE CERTIFICATION ENFORCEMENT

5.1 The Strategic Logic

The fraud and false certification pathway is the most legally clean mechanism for recovering money from non-compliant recipients. It does not require proving sanctuary policy is illegal. It requires proving that a recipient certified compliance while maintaining conduct that violated the certification. The act of lying to get federal money — not the underlying policy — is what triggers liability.

5.2 The False Claims Act Architecture

31 U.S.C. §§ 3729–3733 (False Claims Act) — Civil liability for any person who: (1) knowingly presents a false or fraudulent claim for federal payment; or (2) knowingly makes, uses, or causes to be made a false record or statement material to a false claim or obligation. 'Knowingly' includes actual knowledge, deliberate ignorance, or reckless disregard. Penalties: treble the government's damages plus civil monetary penalties per false claim. Includes a 'reverse false claim' provision for false statements made to reduce or avoid a federal obligation.

18 U.S.C. § 1001 (False Statements) — Criminal liability for anyone who knowingly and willfully makes a materially false statement in any matter within the jurisdiction of the federal government. Applies directly to false certifications made in connection with federal grant applications, compliance reports, and attestations. Maximum five years imprisonment per count.

These two statutes work in tandem: the False Claims Act provides the civil recovery mechanism (handled by DOJ Civil Division or qui tam relators); Section 1001 provides the criminal referral hook where knowing falsity can be proven. They operate on the same evidentiary record — the certification documents, audit findings, and communications that demonstrate the recipient knew its certification was false when made.

5.3 Building the Evidentiary Record for FCA Enforcement

FCA enforcement is only as strong as the audit and documentation infrastructure behind it. The following steps must be embedded in the grant compliance structure to make FCA referrals viable:

- Annual compliance attestations (Certification D above) create a fresh false-statement exposure each cycle. Each false attestation is a separate count.
- Conduct targeted audits of high-risk recipients using 2 CFR Part 200 audit authority. Document specific findings of non-compliant conduct alongside certification records. The

evidentiary gap between 'certified compliant' and 'actually non-compliant' is the core of the FCA case.

- Preserve all communications: official policy directives, standing orders, and public statements by the jurisdiction that contradict certification representations. These are admissions.
- Maintain a centralized compliance database with certification records, audit findings, and incident reports (access denials, communication refusals) tied to each recipient entity. This database is the administrative record that supports both FCA referral and debarment.
- Where a relator (whistleblower) inside the jurisdiction identifies false certifications, DOJ should evaluate qui tam intervention under 31 U.S.C. § 3730. Government intervention in a strong qui tam case amplifies enforcement pressure and shifts litigation costs.

5.4 Neutral Audit-Selection Rule (Selective Enforcement Defense)

Audit and compliance-review targeting is the primary vector for as-applied viewpoint-discrimination claims. Plaintiffs in selective enforcement suits argue they were targeted because of their political positions, not their conduct. The complete defense is a documented, neutral selection methodology applied uniformly across all recipients, regardless of political affiliation or public statements.

Audits and compliance reviews under this framework must be triggered exclusively by the following objective metrics, documented in writing at the time of selection:

NEUTRAL AUDIT-SELECTION CRITERIA (Required Documentation)

An audit or compliance review may be initiated under this framework only when one or more of the following objective triggers is documented in the agency's selection record: (a) DASHBOARD METRICS: The recipient's federal non-cooperation dashboard data (Section 7) shows: (i) three or more documented facility access denials within a 12-month period; or (ii) a detainer declination rate exceeding [X]% over two consecutive quarters; or (iii) a documented release-after-notice incident resulting in a subsequent criminal arrest. (b) CERTIFICATION MISMATCH: Agency review of publicly available policies, official directives, or local ordinances discloses a specific, articulable conflict with a certification representation made in a grant application or annual attestation. (c) PRIOR AUDIT FINDING: The recipient received a confirmed finding of non-compliance in a prior award cycle that was not fully remediated within the agreed cure period. (d) COMPLAINT FROM FEDERAL OFFICER: A credible, written complaint from a federal officer documenting a specific incident of access denial, false information, or affirmative obstruction involving grant-funded personnel or grant-funded facilities. (e) REFERRAL FROM INSPECTOR GENERAL: A referral from an agency Office of Inspector General based on an independent audit or investigation. SELECTION PROHIBITION: No audit or compliance review may be initiated based on: the recipient's public statements about immigration policy; the recipient's political affiliation or the political affiliation of its elected officials; the recipient's

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participation in advocacy or litigation regarding federal immigration
enforcement; or any other factor related to the recipient's viewpoints
or expression. Selection decisions must be documented in writing with
the specific objective trigger identified. The selection record is
subject to disclosure in any litigation alleging selective enforcement.
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DOCUMENTATION REQUIREMENT: The agency must maintain a centralized audit-selection log recording, for every recipient selected for review: (1) the objective trigger(s) identified; (2) the date the trigger was documented; (3) the identity of the selecting official; and (4) confirmation that no prohibited selection factor was considered. This log is the primary defense exhibit in any selective enforcement or viewpoint-retaliation suit.

5.5 Clawback and Recoupment Procedures

Separate from the FCA, 2 CFR Part 200 provides administrative clawback authority for disallowed costs. Where an audit finds that grant funds were used in violation of award terms — including in ways that violated certification representations — the awarding agency may disallow those costs and require repayment. This is an administrative remedy, not a judicial one, making it faster to initiate. It must follow the procedural requirements of 2 CFR §§ 200.341–200.346, including written notice, the basis for disallowance, and appeal rights.

SECTION 6: PILLAR 4 — TARGETED CRIMINAL ENFORCEMENT (ELEMENT-FIT ONLY)

6.1 The Charging Discipline Rule

Criminal enforcement is the most powerful lever and the most vulnerable to overreach. Charging decisions that lack element support generate acquittals, create bad precedent, and signal prosecutorial overreach that courts use to scrutinize future enforcement actions. The rule is: charge where the elements fit, and only where they fit.

THE FIRST AMENDMENT BOUNDARY — DO NOT CROSS THIS LINE

- Advocacy for immigration reform, legal defense of unauthorized individuals, public statements welcoming immigrants, religious sanctuary declarations, and political opposition to enforcement policy are constitutionally protected and cannot be targeted as criminal conduct.
- Attempting to prosecute 'welcoming messaging,' 'sanctuary advocacy,' or legal representation as obstruction or harboring is litigation designed to lose. It generates adverse precedent that handicaps future legitimate prosecutions.
- The moment a charging theory requires proving that a defendant held a particular viewpoint, the prosecution has left the domain of conduct-based criminal law and entered a constitutional minefield.

- Target the act. Ignore the sentiment. A person who harbors an unauthorized individual while publicly opposing enforcement is prosecutable for the act. A person who publicly advocates for leniency without committing a qualifying act is not.

6.2 The Prosecutable Conduct Catalog

The following catalogs the full range of conduct that is prosecutable under federal law, with required elements noted for each. All charging decisions should be evidence-driven against these specific elements.

Harboring, Transportation, and Facilitation — 8 U.S.C. § 1324

- Concealing, harboring, or shielding an unauthorized alien from detection. Required: affirmative act of concealment; knowledge of or reckless disregard for unlawful status; must be more than mere cohabitation or incidental contact.
- Transporting an unauthorized alien within the U.S. in furtherance of unlawful status. Required: transportation is 'in furtherance of' the unlawful presence — not merely incidental; knowledge of status.
- Inducing or encouraging illegal entry or residence. Required: direct encouragement to a specific individual; knowledge the entry or residence will be unlawful. Note: U.S. v. Hansen (2023) confirmed this provision targets intentional facilitation, not general advocacy.
- Conspiracy and aiding/abetting: each carries the same penalties as the underlying offense; requires agreement or knowing assistance with the same element requirements.
- Per-person counting: each individual harbored, transported, or induced is a separate count with separate sentencing exposure.

Document Fraud and Identity Crimes

- 18 U.S.C. § 1546: Fraud and misuse of visas, permits, and other entry documents. One of the most commonly charged immigration-adjacent offenses; elements are straightforward and evidence is usually documentary.
- 18 U.S.C. §§ 1028–1028A: Identity fraud and aggravated identity theft. Applies to use of another person's identity documents in connection with immigration violations. Aggravated identity theft carries a mandatory consecutive two-year sentence.
- 18 U.S.C. § 1001: False statements to federal investigators or in federal processes. Applies to individuals and organizational representatives who lie to federal agents during enforcement operations.

Obstruction and Interference with Federal Operations

- 18 U.S.C. § 1509: Obstruction of court orders and federal officers in performance of duties. Required: affirmative obstructive act; knowledge the person being obstructed is a federal officer performing lawful duties. Does not reach passive non-cooperation.

- 18 U.S.C. § 111: Assaulting, resisting, opposing, impeding, intimidating, or interfering with a federal officer. Required: active physical or direct obstructive conduct. Up to 8 years; up to 20 years with a dangerous weapon.
- 18 U.S.C. § 1512: Witness tampering and obstruction of official proceedings. Applies where individuals are instructed to withhold testimony, destroy evidence, or evade legal process in connection with federal investigations.
- 18 U.S.C. § 372: Conspiracy to prevent a federal officer from performing official duties. Requires coordinated affirmative acts by two or more persons — not merely a shared policy.

Employment Fraud and Financial Crimes

- 8 U.S.C. § 1324a: Unlawful employment of unauthorized aliens. Applies to employers who knowingly hire unauthorized workers. Civil fines plus criminal penalties for pattern and practice violations.
- 18 U.S.C. §§ 1956–1957 (Money Laundering): Applies where proceeds of § 1324 violations or smuggling operations are laundered through financial transactions. Significantly expands forfeiture reach and penalty exposure.
- 18 U.S.C. §§ 1961–1968 (RICO): Available against organized enterprises with a pattern of qualifying predicate acts. Applicable to smuggling and harboring networks — not to political jurisdictions maintaining sanctuary policies.

6.3 Asset Forfeiture: What It Can and Cannot Do

Asset forfeiture in the immigration context is judicially supervised and tied to specific criminal conduct. It is not an administrative freeze and cannot be imposed unilaterally.

Forfeiture Type	When Available	Required Process	Limitation
Criminal forfeiture	Post-conviction; assets must be traceable to the offense	Conviction + judicial forfeiture order	Requires conviction; scope limited to traceable assets
Civil forfeiture (8 U.S.C. § 1324(b))	Assets used in or derived from § 1324 violations	Probable cause + judicial proceeding; notice + contest rights	Judicially supervised; due process applies; not a unilateral freeze
FCA judgment/settlement	False certifications + grant funds drawn on false basis	Civil litigation (DOJ or qui tam); judgment or settlement	Operates through courts; treble damages make it financially devastating
2 CFR clawback / disallowance	Grant funds used in violation of award terms	Administrative remedy; documented finding + notice	Limited to funds actually disbursed under the affected award; no criminal element required

SECTION 7: PILLAR 5 — TRANSPARENCY, PUBLIC REPORTING, AND POLITICAL COST

7.1 The Strategic Logic

Public reporting creates enforcement pressure that does not require litigation, cannot be enjoined, and operates on local elected officials' political incentives rather than their legal obligations. This pillar is often underutilized because it looks like the 'soft' option. In practice, when jurisdictions see their declination rates, release-after-notice numbers, and federal cost displacement figures published quarterly with their name attached, local political dynamics frequently shift faster than any court proceeding.

7.2 The Federal Non-Cooperation Dashboard

The following data points should be collected, standardized, and published quarterly at the federal level for every jurisdiction that has received a relevant federal grant or is subject to a detainer notification request. Publication is an executive function requiring no new legislation and no court order.

- Detainer request counts by jurisdiction, with declination rates and declination reasons.
- Release-after-notice incidents: cases where a jurisdiction released an individual after ICE notification but before ICE could assume custody, with subsequent re-arrest or criminal incident data where available and lawfully collectible.
- Facility access denial incidents: logged refusals of federal officer access to interview individuals in custody, with dates, facility names, and stated reasons.
- Grant compliance findings: audit results, certification review outcomes, and administrative findings, published by recipient entity.
- Federal workload displacement: estimated federal operational cost incurred as a result of non-cooperation, including cost of independent federal custody, transport, and court processing attributable to jurisdictions that declined to cooperate.
- Criminal incident attribution: where a removed or removable individual was released by a non-cooperating jurisdiction and subsequently committed a documented offense, this data should be reported with jurisdiction identification, subject to applicable privacy laws.

7.3 Why This Is High-Leverage

- It is not a legal proceeding and cannot be enjoined as punitive action. It is data publication, which is a core executive function.
- Local elected officials who decline to cooperate with ICE typically face constituents on both sides. Published data that attributes specific criminal incidents or cost figures to their decisions changes the local political calculus without requiring federal action beyond data collection and publication.
- It creates a feedback loop: jurisdictions that improve their cooperation metrics see their public profile improve. This incentivizes voluntary compliance more effectively than a mandate in many cases.

- It generates the evidentiary record for FCA referrals and debarment proceedings by documenting the gap between certified conduct and actual conduct over time.

SECTION 8: PILLAR 6 — OPERATIONAL CAPACITY EXPANSION

8.1 The Strategic Logic

Sanctuary policies derive their functional power from the federal government's operational dependence on local cooperation for custody, detention, and case processing. The most durable long-term solution to sanctuary friction is reducing that dependence by expanding federal capacity, not attempting to mandate local participation that anti-commandeering doctrine bars.

- Federal detention capacity: Expand intergovernmental service agreements with cooperative jurisdictions; utilize military installation capacity authorized under applicable law; expand private contract detention where legally and operationally viable. The goal is sufficient federal bed capacity that a non-cooperating local jail is not a meaningful choke point.
- Federal transport infrastructure: Build or expand ICE Air Operations and USMS transport capacity so that individuals cannot effectively 'wait out' federal enforcement by being in a non-cooperating jurisdiction.
- Immigration court throughput: Invest in EOIR capacity (judges, staff, technology) to reduce removal proceeding backlogs. A system that processes cases in 90 days is harder to obstruct than one with a three-year backlog.
- Federal interagency task forces: Formalize coordination between ICE, HSI, DEA, FBI, USMS, and IRS-CI for cases involving facilitation networks. The strongest prosecutions combine immigration violations with financial crimes, document fraud, and trafficking — areas where multiple agencies have independent investigative authority not subject to local interference.
- Technology and case management: Invest in biometric tracking, case management systems, and cross-agency data sharing that reduce reliance on local record access and allow federal operations to proceed with minimal local cooperation.
- Prioritize enforcement operations in non-cooperating jurisdictions: concentrate federal operational resources in areas where non-cooperation is highest, to maximize removal rates from those jurisdictions and demonstrate that sanctuary policy does not prevent enforcement — it only increases federal cost and reduces local control.

SECTION 9: PRESCRIPTIVE SUBSTITUTION GUIDE

The following substitutions replace the most commonly enjoined enforcement language with maximum-pressure equivalents that remain within constitutional rails. These are not weaker versions of the original language. They are stronger versions — because they will not be immediately enjoined.

Enjoinable Language (Avoid)	Maximum-Pressure Durable Substitute
"Jurisdictions must honor ICE detainers."	"DHS issues civil detainer requests pursuant to 8 CFR § 287.7. Jurisdictions that decline to notify ICE of scheduled releases or decline access to interview individuals in custody will be identified on the federal non-cooperation registry and will be ineligible for specified discretionary law enforcement grants upon next application cycle, consistent with program conditions stated in the award agreement."
"Any non-compliant jurisdiction will be completely defunded."	"Jurisdictions found, through documented audit findings and administrative process under 2 CFR Part 200, to have materially violated the terms of a discretionary award will be subject to the full range of Part 200 remedies up to and including award termination and referral for suspension and debarment proceedings under 2 CFR Part 180. Each remedy will be supported by a documented administrative record and will be proportionate to the nature and severity of the violation."
"Anyone who does not comply will be prosecuted."	"Where conduct satisfies the statutory elements of 8 U.S.C. § 1324, 18 U.S.C. §§ 111, 1001, 1509, or related statutes — including the required actus reus and mens rea — DOJ will pursue case-specific criminal prosecution. All charging decisions are evidence-driven and consistent with applicable prosecutorial standards."
"Assets will be seized or frozen."	"Where criminal conduct is established and assets are traceable to qualifying predicate offenses, the government will seek judicially authorized forfeiture pursuant to applicable forfeiture statutes following required judicial process. Where grant funds were drawn on the basis of materially false certifications, the government will pursue civil recovery under the False Claims Act and administrative disallowance under 2 CFR Part 200."
"Sanctuary policies are illegal."	"State and local laws or policies that affirmatively direct officials to physically obstruct federal officers, destroy records subject to federal legal process, or provide materially false information to federal investigators are subject to preemption challenge and DOJ civil injunction under the Supremacy Clause. Passive non-participation in federal enforcement, including declining to honor civil detainer requests, is not the subject of this provision."
"Automatic escalation to full enforcement."	"Presumptive escalation through the documented compliance ladder, with administrative findings, notice, and opportunity to cure at each step, consistent with 2 CFR Part 200 procedures. Criminal referral is made where independently developed evidence satisfies applicable statutory elements and prosecutorial standards."
"Organizations that help illegal immigrants will be shut down."	"Organizations that, with knowledge of or reckless disregard for unlawful status, engage in conduct satisfying the elements of 8 U.S.C. § 1324 may be subject to criminal prosecution, asset forfeiture of instrumentalities and proceeds, civil FCA liability where federal funds are involved, and IRS referral for

Enjoinable Language (Avoid)	Maximum-Pressure Durable Substitute
	501(c)(3) review where unlawful conduct has been documented. Organizations providing lawful humanitarian assistance, legal representation, or advocacy services are not the subject of this provision."

SECTION 11: KNOWN LITIGATION FAULT LINES AND HOW THIS ARCHITECTURE ADDRESSES THEM

This section is not a concession of weakness. It is armor. An enforcement posture that acknowledges the principal legal challenges to which it is exposed and demonstrates how its specific design addresses each challenge is substantially harder to enjoin than one that ignores those challenges. Courts are more likely to sustain mechanisms that show awareness of doctrine and calibration to it. This section should be read alongside any legal challenge filed against this framework.

11.1 Anti-Commandeering (Printz / Murphy)

FAULT LINE: The federal government cannot compel state or local officers to execute federal programs, administer federal law, or enforce federal immigration law using their own personnel and resources.

HOW THIS ARCHITECTURE ADDRESSES IT: Every compliance obligation in this framework is structured as a negative duty (refrain from affirmative obstructive acts) or as a condition of eligibility for discretionary federal benefits that applicants voluntarily accept. No provision orders a state or local official to perform any federal function. Detainers are explicitly framed as requests. The compliance definition in Section 4 carves out passive non-participation by name. The grant certifications do not require local officials to conduct enforcement, hold individuals for ICE, or participate in federal operations — only to refrain from specific conduct that directly interferes with federal officers and to truthfully represent their policies when accepting federal funds.

RESIDUAL RISK

- Any amendment to this framework that adds a provision reading as 'state/local officials must [perform federal function]' reintroduces commandeering vulnerability immediately.
- Detainer-compliance mandates framed as legal obligations rather than conditions of eligibility remain the most reliably enjoined provision in this area of law.
- The compliance definition in Section 4 must remain conduct-based. Expanding it to capture passive non-participation converts it into a commandeering provision.

11.2 Spending Clause Coercion (South Dakota v. Dole / NFIB v. Sebelius)

FAULT LINE: Grant conditions must be (1) clearly stated, (2) related to the federal interest in the program, and (3) not so coercive as to leave states no genuine choice but to comply. Total defunding threats for unrelated conditions trigger the NFIB coercion ceiling.

HOW THIS ARCHITECTURE ADDRESSES IT: Each certification in Section 3 includes an explicit program-nexus statement explaining why the condition is material to the specific program purpose. Remedies are framed as proportionate and limited to award/program scope unless independent fraud findings support broader action. The compliance ladder escalates through documented steps rather than threatening immediate total cutoff. The framework explicitly limits immigration-cooperation conditions to programs with a genuine law enforcement nexus and acknowledges that education, healthcare, and transportation grants require congressional authorization for immigration conditions.

RESIDUAL RISK

- Threatening to cut off all federal funds for a state for maintaining a sanctuary policy — as opposed to targeting specific discretionary awards with nexus conditions — remains unconstitutionally coercive under NFIB regardless of how it is drafted.
- Conditions must be stated in the award agreement before the recipient applies. Retroactively adding conditions to existing awards mid-stream is both a Dole clarity problem and an administrative law problem.
- Proportionality must be documented. Terminating a large award for a technical paperwork deficiency will read as arbitrary and capricious and will be reversed on administrative appeal or judicial review.

11.3 Section 1373 Litigation Exposure

FAULT LINE: 8 U.S.C. § 1373 has itself been challenged as raising anti-commandeering concerns by directing how state officials must behave. Multiple circuit courts struck down DOJ grant conditions that relied solely on § 1373 compliance between 2017 and 2020.

HOW THIS ARCHITECTURE ADDRESSES IT: Section 1373 is cited as contextual authority and baseline cooperation standard, but it is not the sole or primary pillar of the funding leverage architecture. Each grant certification rests on the awarding program's own statutory purpose and 2 CFR Part 200 grant management authority, not solely on § 1373. This means that even if a court limits the reach of § 1373 in future litigation, the certification structure survives independently on program-nexus grounds.

RESIDUAL RISK

- The § 1373 litigation landscape remains unsettled. Do not build any single enforcement mechanism that depends entirely on § 1373 as its sole legal hook.
- Courts that have questioned § 1373 have generally not questioned the underlying principle that false certifications are actionable — the FCA and § 1001 pathways

remain clean.

11.4 Detainer Compliance

FAULT LINE: Civil detainers are regulatory requests under 8 CFR § 287.7, not court orders. Courts have repeatedly rejected mandatory detainer-hold requirements as both anti-commandeering violations and Fourth Amendment concerns (warrantless detention beyond the original basis for custody).

HOW THIS ARCHITECTURE ADDRESSES IT: This framework treats detainers as requests throughout. The consequence for declining a detainer is not criminal liability or automatic defunding — it is identification on the non-cooperation registry and ineligibility for specified discretionary grant programs. This converts the detainer system from a failed mandate into a working incentive structure: jurisdictions that routinely decline detainers face documented ineligibility for law enforcement grants with a direct programmatic nexus. The transparency dashboard separately records declination rates to create political cost without legal compulsion.

RESIDUAL RISK

- Any language characterizing detainer compliance as legally mandatory — rather than a preferred cooperation standard with eligibility consequences — reintroduces the vulnerability that has caused detainer-mandate provisions to be enjoined consistently since 2014.

11.5 First Amendment and Viewpoint Discrimination

FAULT LINE: Government enforcement mechanisms that target political speech, advocacy, legal representation, or association rather than conduct violate the First Amendment and will be struck as viewpoint discrimination.

HOW THIS ARCHITECTURE ADDRESSES IT: The conduct-based non-cooperation definition in Section 4 explicitly excludes political statements, sanctuary declarations, legislative positions, legal representation, and advocacy from its scope. Section 6 includes a dedicated First Amendment boundary box prohibiting prosecution theories that require proving a defendant held a particular viewpoint. The substitution guide in Section 9 replaces language targeting 'organizations that help illegal immigrants' with language targeting specific conduct meeting specific statutory elements. The model certifications do not restrict speech — they restrict the use of federal funds to finance operational interference with federal enforcement and restrict affirmative obstructive acts.

RESIDUAL RISK

- If enforcement actions are brought against advocacy organizations whose primary activity is legal or political and the prosecution theory requires proving their

messaging or advocacy constitutes a crime, the First Amendment vulnerability reappears regardless of the framework language.

- Audit targeting of organizations based on their political positions rather than their documented conduct would constitute viewpoint discrimination and expose the entire certification structure to challenge.

APPENDIX B: PROGRAM-BY-PROGRAM STATUTORY AUTHORITY MAPPING

This appendix maps each major DOJ and DHS discretionary grant program to its authorizing statute, program purpose, and the basis on which Certifications A, B, and/or C are within that statutory purpose. This mapping is the direct rebuttal to the argument that a particular grant statute does not authorize the condition. Where the nexus is strong, the mapping demonstrates it. Where the nexus is weaker, the appendix identifies that the condition should not be applied to that program without additional congressional authorization.

LEGAL NOTE: Conditions added to grant programs by executive action are on firmest ground when: (a) the authorizing statute explicitly references law-enforcement coordination or interagency cooperation; (b) the program purpose directly involves custody, detention, or public safety; or (c) prior statutory amendments have incorporated immigration-related eligibility conditions. Conditions on programs lacking these features require explicit congressional authorization to survive Dole challenge.

Program	Authorizing Statute	Stated Program Purpose	Condition Authority Hook	Certifications	Nexus Strength
Byrne JAG	34 U.S.C. §§ 10151–10158	Funds state/local law enforcement; explicitly includes interagency coordination and information sharing as program purposes	34 U.S.C. § 10153(a)(5)(A) (coordination purposes); 2 CFR § 200.210 (award terms authority); 28 C.F.R. Part 66 (DOJ grant conditions)	A, B, D	STRONG
COPS	34 U.S.C. § 10381 et seq.	Funds law enforcement officer hiring and community policing; coordination with other agencies is an explicit program element	34 U.S.C. § 10382(c) (authorized use conditions); 2 CFR § 200.210; 28 C.F.R. Part 66	A, B, D	STRONG
SHSGP	6 U.S.C. §	State homeland	6 U.S.C. § 604(b)	A, B, D	STRONG

Program	Authorizing Statute	Stated Program Purpose	Condition Authority Hook	Certifications	Nexus Strength
	604	security preparedness; statute explicitly requires coordination with federal agencies and information sharing as program conditions	(2) (use of funds requirements); 2 CFR § 200.210; 6 C.F.R. Part 13		— statute explicit
UASI	6 U.S.C. § 604	Urban security; same statutory basis as SHSGP; federal-local coordination is a core program requirement	Same as SHSGP; 6 U.S.C. § 604(b)(2); 2 CFR § 200.210	A, B, D	STRONG
EMPG	42 U.S.C. § 5131 (Stafford Act)	Emergency management capability; federal coordination is an element but not the primary focus	42 U.S.C. § 5131(b) (coordination requirements); 2 CFR § 200.210; FEMA grant conditions regulations	B, D only	MODERATE — A requires stronger award-specific nexus
VOCA Grants	34 U.S.C. § 20101 et seq.	Victim assistance services; primary purpose is victim welfare, not law enforcement coordination	34 U.S.C. § 20103 (authorized uses); 2 CFR § 200.210 (anti-fraud certification standard for all awards)	D only	WEAK for A/B — congressional authorization required
OJJDP Grants	34 U.S.C. § 11101 et seq.	Juvenile justice and delinquency prevention; child welfare focus	34 U.S.C. § 11102 (program purposes); 2 CFR § 200.210 (anti-fraud only)	D only	WEAK for A/B — congressional authorization required
287(g) Agreements	8 U.S.C. § 1357(g)	Voluntary cooperative agreement for immigration enforcement; participants assume enforcement functions	8 U.S.C. § 1357(g)(1)–(3) (agreement terms authority); DHS MOA conditions; not a grant program	Full toolkit by agreement	N/A — voluntary; conditions accepted by agreement

Program	Authorizing Statute	Stated Program Purpose	Condition Authority Hook	Certifications	Nexus Strength
DHS Preparedness (general)	6 U.S.C. § 609	Various preparedness activities; nexus to federal coordination varies by specific award	6 U.S.C. § 609 (authorized uses); 2 CFR § 200.210; award-specific nexus analysis required	Award-specific	VARIES — individual nexus review required

PROGRAMS WHERE CERTIFICATIONS A AND B SHOULD NOT BE APPLIED WITHOUT CONGRESSIONAL AUTHORIZATION

- HUD Community Development Block Grants (CDBG) — 42 U.S.C. § 5301: Housing and community development purpose; no law enforcement nexus.
- HHS Title X Family Planning Grants — 42 U.S.C. § 300 et seq.: Health services purpose; no law enforcement nexus.
- DOT Federal Highway Administration Grants — 23 U.S.C. § 101 et seq.: Transportation infrastructure; no law enforcement nexus.
- DOEd Title I Grants — 20 U.S.C. § 6301 et seq.: Educational services to disadvantaged students; no law enforcement nexus.
- SNAP, Medicaid, TANF — mandatory/formula programs: Not discretionary grants; executive cannot unilaterally condition without statutory amendment.
- NOTE: Attaching Certifications A or B to these programs without explicit statutory authorization is the fastest path to a successful Dole nexus challenge and adverse judicial precedent that could weaken the conditions on stronger programs.

APPENDIX C: DEFINITIONS WITH BRIGHT LINES

This appendix provides authoritative definitions for the key terms used throughout this framework. These definitions are designed to give enforcement actors, recipients, and reviewing courts clear, concrete guidance on what triggers enforcement consequences and what does not. Ambiguity in definitions is the primary attack surface for preliminary injunctions. Precision here is not restriction — it is durability.

C.1 Affirmative Obstruction

DEFINITION: 'Affirmative obstruction' means any act by a person or entity that directly and intentionally interferes with, impedes, or prevents a federal immigration officer from performing a specific, lawful enforcement action the officer is in the process of executing.

AFFIRMATIVE OBSTRUCTION — INCLUDED (Examples)

- A supervisor physically placing themselves between an ICE officer and an individual the officer is in the process of arresting pursuant to lawful authority.
- A facility administrator issuing a real-time verbal or written instruction to personnel to physically block ICE officers from entering a facility they have lawful authority to access.
- An official directing personnel to destroy or conceal records during an active federal investigation or audit.
- An official issuing written instructions to personnel to provide false or misleading information to federal officers in response to a specific enforcement inquiry.
- Coordinated action by two or more officials to physically prevent federal agents from completing a specific, in-progress enforcement operation.

AFFIRMATIVE OBSTRUCTION — NOT INCLUDED (Explicitly Excluded)

- Maintaining a general policy of declining to honor ICE civil detainer requests.
- Enacting legislation that declines to require local officers to participate in immigration enforcement.
- Issuing a public statement designating a jurisdiction as a sanctuary city or welcoming community.
- Failing to respond to an ICE information request within a preferred timeframe.
- Challenging a federal enforcement action through lawful judicial proceedings.
- Providing legal counsel to individuals subject to federal immigration enforcement.

C.2 Material False Certification

DEFINITION: A certification is 'materially false' when: (1) the representation made was false at the time it was made; (2) the person or entity making the certification knew the representation was false, acted in deliberate ignorance of its truth or falsity, or acted in reckless disregard of its truth or falsity; and (3) the false representation was material — meaning it had a natural tendency to influence, or was capable of influencing, the agency's decision to award, continue, or disburse funds.

MATERIALITY FACTORS: Courts assess materiality by examining whether the government would have paid the claim if it had known the representation was false; whether the condition underlying the certification was expressed as material by the government; and the relationship between the false representation and the award terms. A false statement on a minor procedural matter peripheral to the award purpose is less likely to meet the materiality threshold than a false statement about the recipient's core compliance with the program's central conditions.

NOTE: Materiality under the FCA is an objective standard. A recipient's belief that the false certification did not matter does not defeat materiality if the false representation concerned a condition the government has expressed as material to the award.

C.3 Facility Access Denial

DEFINITION: 'Facility access denial' means a specific, affirmative refusal by a facility administrator or supervisor to permit federal immigration officers to enter a federally funded facility for the purpose of conducting voluntary interviews with individuals in the facility's custody, where: (1) the officers have presented valid credentials and stated their lawful purpose; (2) the requested access does not violate an applicable court order; and (3) the denial is not required by a generally applicable, non-discriminatory access policy that applies equally to all outside law enforcement agencies.

REASONABLE ACCESS OPERATIONAL PROTOCOL: To reduce vagueness challenges and provide facilities with a facially neutral compliance standard, 'reasonable access' under Certification A means access consistent with the following minimum protocol, which applies equally to all outside law enforcement agencies:

REASONABLE ACCESS MINIMUM PROTOCOL (Facially Neutral — Applies to All Outside Law Enforcement)

(a) CREDENTIALING: Requesting officers must present valid government-issued law enforcement credentials upon arrival. Facility staff may verify credentials by contacting the issuing agency through independently obtained contact information (not information provided by the requesting officers). (b) TIMING WINDOWS: Access requests should be accommodated during the facility's standard operational hours for outside law enforcement visits. For facilities without established visiting hours for law enforcement, a standard window of 8:00 a.m. to 5:00 p.m. on business days applies unless the requesting agency demonstrates operational necessity for access outside those hours. (c) ADVANCE NOTICE: Facilities may require up to [4] hours advance notice for routine interview requests. Emergency requests — where the requesting agency documents operational necessity — must be accommodated as promptly as facility security permits. (d) ESCORT: Facilities may require that requesting officers be escorted by a facility staff member during the visit. Escort requirements must apply equally to all outside law enforcement agencies. Escort may not be used to prevent, delay, or obstruct the interview itself. (e) INTERVIEW SPACE: The facility must provide a private or semi-private space suitable for a law enforcement interview. The facility is not required to provide dedicated interview rooms if no such rooms exist, but must provide a space that is not an open common area. (f) VOLUNTARY NATURE: The protocol does not compel any individual in the facility to participate in an interview. Refusal by the individual is not a facility access denial. Officers must inform individuals that participation is voluntary. APPLICATION: A facility that applies this protocol uniformly to all outside law enforcement agencies — including federal immigration officers — is in compliance with Certification A's access requirement regardless of whether any particular interview is ultimately conducted.

ACCESS DENIAL — COUNTS AS DENIAL

- A written directive from a facility administrator specifically prohibiting ICE officer access to interview individuals in the facility.
- A verbal refusal by an authorized facility representative to permit credentialed ICE officers to enter for stated interview purposes, not covered by any applicable security policy.
- A policy that permits access to some law enforcement agencies but categorically excludes federal immigration officers.

ACCESS DENIAL — DOES NOT COUNT

- Application of a genuinely neutral, generally applicable facility security protocol that applies equally to all outside agencies, including other federal agencies.
- A requirement that ICE officers provide advance notice consistent with the facility's standard procedure for all outside law enforcement.
- Refusal of access required by a court order applicable to the facility.
- An individual detainee's refusal to participate in an interview (the detainee's choice is not the facility's denial).

C.4 Passive Non-Participation (Explicitly Excluded from All Enforcement Triggers)

DEFINITION: 'Passive non-participation' means any act of refraining from providing affirmative assistance to federal immigration enforcement, without any accompanying affirmative obstructive conduct. Passive non-participation does not trigger any enforcement mechanism under this framework.

Passive non-participation includes, without limitation:

- Declining to honor a federal civil detainer request (Form I-247A).
- Declining to dedicate state or local law enforcement personnel to federal immigration enforcement operations.
- Declining to enter into a 287(g) agreement or any other voluntary cooperation agreement with federal immigration authorities.
- Declining to share immigration-status information that the jurisdiction is not legally required to collect or that is protected by applicable state privacy law.
- Enacting or maintaining legislation that limits local participation in federal enforcement without directing affirmative interference.
- Issuing political or policy statements expressing disagreement with federal immigration enforcement priorities.
- Providing generally available municipal services to individuals regardless of immigration status, without concealment intent.

RATIONALE: This exclusion is required by the anti-commandeering doctrine as established in Printz v. United States and Murphy v. NCAA. The federal government may not criminalize or financially penalize the mere refusal of a state or local entity to perform a federal function. The enforcement architecture in this framework is calibrated entirely around affirmative conduct that crosses into obstruction, fraud, or facilitation of criminal violations — not around the absence of cooperation.

C.5 Program-Nexus Requirement

DEFINITION: A grant condition has a 'program nexus' when there is a direct and genuine relationship between the condition and the specific federal interest that the grant program is designed to advance, such that noncompliance with the condition would meaningfully compromise the program's objectives.

APPLICATION: Under South Dakota v. Dole, every funding condition in this framework must satisfy the nexus requirement independently. The following table maps the conditions in this framework to their nexus justification:

Certification	Grant Program Type	Nexus Justification	Programs Where Nexus Is WEAK (Requires Congressional Authorization)
A — Non-Interference	DOJ/DHS law enforcement grants (Byrne JAG, COPS, Homeland Security)	Condition directly protects the coordination of law enforcement activities the grant funds; interference with federal officers undermines the program objective	Education, healthcare, housing, transportation — nexus to immigration enforcement is not direct without statutory authorization
B — Non-Use of Funds	All DOJ/DHS discretionary grants	Prevents federal public safety funds from being used to impede the federal public safety operations they are designed to support; direct programmatic conflict	Grants administered by agencies with no law enforcement mission (e.g., HHS nutrition programs, DOT highway funds)
C — Record Retention	Grants involving federally funded custody or detention facilities	Record integrity is a direct prerequisite to the lawful administration of federally funded facility operations and grant audit compliance	Grants with no connection to custody, records, or facility operations
D — Annual Attestation	All awards carrying Certifications A, B, or C	Annual recertification ensures ongoing compliance and creates the FCA evidentiary record; standard practice for all federal award programs	N/A — Certification D applies only in conjunction with A, B, or C

SECTION 12: CONCLUSIONS

The architecture presented in this paper delivers the maximum lawful pressure available against non-cooperating jurisdictions, facilitation networks, and obstructive actors under existing U.S. constitutional and statutory law. It achieves this not by overstating authority, but by deploying every tool that actually works — precisely, procedurally, and in a sequence that builds an administrative and evidentiary record that supports escalation.

The six-pillar architecture is designed so that each pillar operates independently. Courts that enjoin one mechanism do not disrupt the others. Jurisdictions that defeat a grant condition challenge still face the transparency dashboard, the operational capacity expansion, and the element-fit criminal enforcement pipeline. There is no single point of failure.

The most important principle this paper advances is the distinction between conduct and viewpoint. Every enforcement mechanism in this architecture targets acts — obstructive conduct, false certifications, harboring, fraud — not political positions, legal advocacy, or institutional declarations. This distinction is not a concession to political opponents. It is the reason this architecture survives judicial review while broader postures do not.

SUMMARY: THE SIX INDEPENDENT PILLARS

- Pillar 1: Discretionary grant certification choke point — model certifications + Part 200 compliance ladder + FCA referral trigger.
- Pillar 2: Conduct-based non-cooperation definition — targeting affirmative obstruction, not passive non-participation.
- Pillar 3: Fraud and false certification enforcement — FCA civil recovery, § 1001 criminal referral, administrative clawback.
- Pillar 4: Element-fit criminal prosecution — harboring, document fraud, obstruction, RICO for organized networks; no viewpoint targeting.
- Pillar 5: Transparency and political cost — federal non-cooperation dashboard; cannot be enjoined; changes local political incentives.
- Pillar 6: Operational capacity expansion — reduces functional dependence on local cooperation; makes sanctuary policy operationally irrelevant over time.

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